

Bylaws and Governance Framework for Limye' Foundation

Introductory Memorandum for the Board of Directors

TO: The Inaugural Board of Directors, Limye' Foundation¹

FROM: Non-Profit Governance Counsel²

DATE: October 11, 2025³

SUBJECT: Review and Adoption of the Inaugural Bylaws of Limye' Foundation⁴

This memorandum provides an overview of the accompanying Bylaws of Limye' Foundation (the "Foundation")⁵. This document has been meticulously drafted to serve as the foundational governing instrument for the organization⁶. It is designed not only to ensure legal compliance but also to provide a durable and flexible framework that enables the Foundation's unique operational model and long-term vision⁷.

These bylaws are structured to satisfy the dual legal requirements of the Alabama Nonprofit Corporation Act and the stringent regulations set forth by the Internal Revenue Service (IRS) for organizations seeking and maintaining tax-exempt status under Section 501(c)(3) of the Internal Revenue Code⁸. Adherence to the procedures outlined herein is essential for protecting the Foundation's legal status and the personal liability of its directors⁹.

Particular attention has been given to incorporating the specific governance structures requested during the formation process¹⁰. The following points highlight how these custom provisions have been integrated in a legally sound manner¹¹:

- **Founder's Directorship (Article III, Section 3.3):** To honor the foundational role of Quincy Ruffin, the bylaws establish a designated directorship, exempt from standard term limits¹². This provision secures the Founder's ongoing strategic involvement¹³. To balance this unique position with best practices in nonprofit governance and mitigate risks associated with "founder's syndrome," the bylaws also include a "for cause" removal clause¹⁴. This ensures that the Founder, like all directors, remains accountable to their fiduciary duties, thereby demonstrating to regulators that the board retains

ultimate, independent oversight and that the organization is operated for the public good, not for private benefit¹⁵.

- **Chairman's Authority (Article IV, Section 4.3 and Article V, Section 5.3):** The bylaws grant the Chairman of the Board significant authority over board composition and succession planning¹⁶. This is achieved through procedural leadership rather than unilateral power¹⁷. The Chairman is designated as the chair of the Governance Committee, the body responsible for identifying, vetting, and nominating new directors¹⁸. Furthermore, the Chairman is empowered to lead the succession process by appointing a Chair-Elect to ensure a smooth leadership transition¹⁹. This structure provides the desired level of influence while preserving the board's collective responsibility and final voting authority, which is a cornerstone of proper fiduciary governance²⁰.
- **Dual-Role Employment and Compensation (Article III, Section 3.8 and Article VI):** The bylaws explicitly permit a director to be compensated for professional services rendered to the Foundation in a capacity other than as a director (e.g., as an employee or independent contractor)²¹. This provision is carefully constructed to align with IRS guidelines, which discourage compensation for board service itself but permit reasonable pay for other professional services²². To prevent any potential for self-dealing, any such arrangement is subject to the rigorous Conflict of Interest policy detailed in Article VI²³. This policy mandates full disclosure, recusal from voting, and a formal determination by disinterested directors that the compensation is "reasonable" based on comparable market data, thereby establishing the IRS's "rebuttable presumption of reasonableness"²⁴.
- **Hybrid Nonprofit/For-Profit Structure (Article IX):** Recognizing the Foundation's innovative model of utilizing for-profit subsidiaries to generate sustainable revenue, a dedicated article has been included to govern these relationships²⁵. This article establishes a clear legal framework requiring that all inter-company transactions be conducted at arm's length and that all subsidiary activities remain aligned with the Foundation's charitable mission²⁶. It mandates that profits from these subsidiaries flow back to the Foundation to support its exempt purposes²⁷. This proactive governance structure is a critical safeguard against potential IRS scrutiny regarding private inurement and ensures the primacy of the Foundation's charitable mission²⁸.

The Board of Directors is urged to review this document thoroughly²⁹. Upon completion of your review, a formal resolution should be passed at the inaugural board meeting to officially adopt these bylaws³⁰. This act will formally establish the legal and operational framework under which Limye' Foundation will pursue its vital mission in West Alabama³¹.

BYLAWS OF LIMYE' FOUNDATION

Article I: Name, Offices, and Legal Status

- **Section 1.1: Name**
The name of the corporation is Limye' Foundation (hereinafter referred to as the "Foundation" or the "Corporation")³².
- **Section 1.2: Principal Office**
The principal office of the Corporation shall be located in Alabama³³. The Board of Directors may change the location of the principal office and establish other offices at such places as the Board of Directors may from time to time determine³⁴.
- **Section 1.3: Registered Agent**
The Corporation shall have and continuously maintain in the State of Alabama a registered agent, whose office is identical with such registered office, as required by the Alabama Nonprofit Corporation Act³⁵. The registered agent and office may be changed from time to time by the Board of Directors³⁶.
- **Section 1.4: Corporate Status**
The Corporation is organized as a nonprofit corporation under the Alabama Nonprofit Corporation Act³⁷. It is organized and shall be operated exclusively for charitable, educational, and scientific purposes that qualify it as an exempt organization under Section 501(c)(3) of the Internal Revenue Code of 1986, or the corresponding section of any future federal tax code (hereinafter "the Code")³⁸.

Article II: Mission, Purposes, and Limitations

- **Section 2.1: Mission**
Our mission is to illuminate pathways to stability for Alabama families by providing coordinated access to housing, transportation, and nutrition support, empowering communities to thrive through dignity-centered, holistic care³⁹.
- **Section 2.2: IRS-Mandated Purpose Clause**
Said Corporation is organized exclusively for charitable, religious, educational, and scientific purposes, including, for such purposes, the making of distributions to organizations that qualify as exempt organizations under Section 501(c)(3) of the Code⁴⁰.
- **Section 2.3: IRS-Mandated Limitations**
The following limitations are binding upon the Corporation⁴¹:

- **Private Inurement:** No part of the net earnings of the Corporation shall inure to the benefit of, or be distributable to, its directors, officers, or other private persons, except that the Corporation shall be authorized and empowered to pay reasonable compensation for services rendered and to make payments and distributions in furtherance of the purposes set forth in Article II hereof⁴².
- **Legislative and Political Activities:** No substantial part of the activities of the Corporation shall be the carrying on of propaganda, or otherwise attempting to influence legislation, and the Corporation shall not participate in, or intervene in (including the publishing or distribution of statements) any political campaign on behalf of or in opposition to any candidate for public office⁴³.
- **Prohibited Activities:** Notwithstanding any other provision of these bylaws, the Corporation shall not carry on any other activities not permitted to be carried on (a) by a corporation exempt from federal income tax under Section 501(c)(3) of the Code, or (b) by a corporation, contributions to which are deductible under Section 170(c)(2) of the Code⁴⁴.

Article III: Board of Directors

- Section 3.1: General Powers and Fiduciary Duties
The affairs, property, and business of the Corporation shall be managed and controlled by its Board of Directors⁴⁵. The Board of Directors may exercise all such powers of the Corporation and do all such lawful acts and things as are not by statute, by the Certificate of Formation, or by these bylaws directed or required to be exercised or done by the members⁴⁶. In exercising their powers, all directors shall adhere to the fiduciary duties of care, loyalty, and obedience to the law, acting in good faith and in a manner they reasonably believe to be in the best interests of the Corporation⁴⁷.
- Section 3.2: Number, Tenure, and Qualifications
The Board of Directors shall be composed of not fewer than three (3) and not more than fifteen (15) voting directors⁴⁸. The number of directors may be fixed or changed from time to time within this range by a resolution of the Board of Directors⁴⁹. Except for the Founder's Directorship as described in Section 3.3, all directors shall hold office for a term of three (3) years⁵⁰. To ensure continuity, director terms shall be staggered⁵¹.
 - Founding directors, outside of the Founder, may serve a maximum of two (2) consecutive three-year terms⁵².
 - Additional directors will serve one-year terms. A director who has served a one-year term shall be eligible for re-election to the Board only after a hiatus of at least one (1) year from the Board⁵³.
- Section 3.3: The Founder's Directorship
In recognition of his unique vision and foundational role, Quincy Ruffin (the "Founder") shall hold a designated directorship on the Board of Directors⁵⁴. The Founder shall

serve as a full voting member of the Board for as long as he is willing and able to serve⁵⁵. The term limits specified in Section 3.2 shall not apply to the Founder's Directorship⁵⁶. This directorship is personal to the Founder and shall cease to exist upon his death, permanent disability, or resignation⁵⁷. Notwithstanding the foregoing, the Founder may be removed from the Board of Directors for cause, as defined in Section 3.5, by an affirmative vote of three-fourths (3/4) of the entire Board of Directors then in office (excluding the Founder)⁵⁸.

- Section 3.4: Nomination and Election of Directors

The Governance Committee, chaired by the Chairman of the Board, shall be responsible for identifying, recruiting, and vetting qualified candidates for election to the Board⁵⁹. The Committee shall present a slate of nominees to the full Board of Directors for election by a majority vote of the directors present at the annual meeting⁶⁰. The nomination process shall be open and transparent, seeking candidates who reflect the diversity of the communities served and possess skills and experience relevant to the Foundation's mission⁶¹.

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- Section 3.5: Resignation and Removal

Any director may resign at any time by giving written notice to the Chairman of the Board or the Secretary of the Corporation⁶². Any director may be removed from office, with or without cause, by the affirmative vote of two-thirds (2/3) of the entire Board of Directors then in office at any regular or special meeting⁶³. "Cause" for removal includes, but is not limited to, breach of fiduciary duty, malfeasance, or any action that brings the Foundation into disrepute⁶⁴. Failure of a director to attend three (3) consecutive regular meetings of the Board without an excuse deemed valid by the Board shall be grounds for automatic removal from the Board⁶⁵.

- Section 3.6: Board Meetings, Quorum, and Voting

Regular meetings of the Board of Directors shall be held quarterly at a time and place designated by the Board⁶⁶. Notice of regular meetings shall be provided to all directors at least ten (10) days in advance. The annual meeting of the Board shall be held in the first quarter of the fiscal year for the purpose of electing officers and transacting other business⁶⁷. Special meetings may be called by the Chairman of the Board or upon the written request of any three (3) directors⁶⁸. A quorum for the transaction of business at any meeting of the Board of Directors shall be a majority of the number of directors then in office⁶⁹. Each director shall have one (1) vote⁷⁰. Voting by proxy shall not be permitted⁷¹. Directors may participate in and hold a meeting of the Board of Directors by means of a conference telephone, video conference, or similar communications equipment by which all persons participating can hear each other. Participation in such a meeting shall constitute attendance and presence at the meeting.

- Section 3.7: Action Without a Meeting

Any action required or permitted to be taken at a meeting of the Board of Directors may be taken without a meeting if a consent in writing, setting forth the action so taken, shall be signed by all of the directors then in office⁷².

- Section 3.8: Compensation and Reimbursement of Expenses

Directors shall not receive any salary or compensation for their services as directors of the Corporation⁷³. Directors may be reimbursed for reasonable and documented

out-of-pocket expenses incurred in connection with their duties as directors⁷⁴. Nothing herein shall preclude any director from serving the Corporation in any other capacity (e.g., as an employee or independent contractor) and receiving reasonable compensation therefor, provided that such compensation arrangement is approved in advance in accordance with the Conflict of Interest policy set forth in Article VI of these bylaws⁷⁵.

Article IV: Officers of the Corporation

- **Section 4.1: Officer Positions and Qualifications**
The officers of the Corporation shall be a Chairman of the Board, a President, a Secretary, and a Treasurer⁷⁶. The Board of Directors may elect or appoint such other officers as it shall deem desirable⁷⁷. The Chairman of the Board must be a director⁷⁸. The same person may hold any two or more offices, except that the offices of President and Secretary shall not be held by the same person, as required by Alabama law⁷⁹.
- **Section 4.2: Election and Term of Office**
The officers of the Corporation shall be elected annually by the Board of Directors at the annual meeting⁸⁰. Each officer shall hold office for a one-year term or until their successor shall have been duly elected and qualified⁸¹.
- **Section 4.3: The Chairman of the Board**
The Chairman of the Board shall be the principal volunteer officer of the Corporation⁸². The Chairman shall preside at all meetings of the Board of Directors and the Executive Committee⁸³. The Chairman shall serve as the primary liaison and partner to the President, ensuring that the Board's directives and resolutions are carried out⁸⁴. By virtue of the office, the Chairman of the Board shall serve as the Chair of the Governance Committee and shall lead the board nomination, development, and succession planning processes⁸⁵. In consultation with the Governance Committee, the Chairman shall appoint a Chair-Elect from among the directors at least one (1) year prior to the anticipated end of their final term to ensure an orderly leadership transition⁸⁶.
- **Section 4.4: The President**
The President shall be the chief executive officer of the Corporation and shall have general and active management of the business and affairs of the Corporation, subject to the direction of the Board of Directors⁸⁷. The President may be, but is not required to be, a director of the Corporation⁸⁸. The President may also hold the title of Executive Director⁸⁹. The President/Executive Director will have authority over budget and financial management in close consultation with the Treasurer and will be able to open bank accounts and sign leases as part of their duties⁹⁰. The Chairman, in consultation with the Governance Committee, shall nominate the President for election by the Board of Directors⁹¹.
- **Section 4.5: The Secretary**
The Secretary shall be responsible for keeping the minutes of the meetings of the Board of Directors ⁹²; see that all notices are duly given in accordance with the provisions of these bylaws or as required by law ⁹³; be custodian of the corporate records ⁹⁴; and in general perform all duties incident to the office of Secretary⁹⁵.

- **Section 4.6: The Treasurer**
The Treasurer shall be the principal financial officer of the Corporation and shall have charge and custody of and be responsible for all funds and securities of the Corporation 96; receive and give receipts for monies due and payable to the Corporation 97; and in general perform all the duties incident to the office of Treasurer98. The Treasurer will work closely with the President/Executive Director on matters of financial management99.
- **Section 4.7: Officer Succession Planning**
The position of Chair-Elect shall be established to facilitate a smooth transition in Board leadership100. The Chair-Elect shall work closely with the current Chairman to learn the duties of the office101. Upon the conclusion of the Chairman's term, the Chair-Elect shall automatically ascend to the office of Chairman, subject to formal ratification by a majority vote of the Board of Directors102.

Article V: Committees of the Board

- **Section 5.1: Committee Formation**
The Board of Directors, by resolution adopted by a majority of the directors in office, may designate one or more committees103. Each committee shall consist of two or more directors, and all committee members shall serve at the pleasure of the Board104.
- **Section 5.2: Executive Committee**
The Executive Committee shall be composed of the officers of the Corporation105. The Executive Committee shall have and exercise the authority of the Board of Directors in the management of the Corporation between meetings of the Board, except that it shall not have the authority to amend the Certificate of Formation or bylaws, elect or remove directors or officers, or approve a merger or dissolution106.
- **Section 5.3: Governance Committee**
The Governance Committee shall be chaired by the Chairman of the Board107. It shall be responsible for matters of board governance, including assessing board composition, leading the recruitment and nomination process for new directors, providing for the orientation of new directors, and overseeing the periodic evaluation of the Board's performance108.
- **Section 5.4: Finance and Audit Committee**
The Finance and Audit Committee shall be chaired by the Treasurer109. It shall be responsible for the oversight of the Corporation's financial management, including reviewing and recommending the annual budget, monitoring financial performance, and recommending the appointment of and receiving the report from the independent auditor110.

Article VI: Conflict of Interest

- **Section 6.1: Purpose**
The purpose of this conflict of interest policy is to protect the Corporation's interest when it is contemplating entering into a transaction or arrangement that might benefit the private interest of an officer or director of the Corporation111. This policy is intended to

supplement but not replace any applicable state and federal laws governing conflict of interest applicable to nonprofit and charitable organizations¹¹².

- **Section 6.2: Definition of Conflict of Interest**

A conflict of interest exists when an "interested person" has a direct or indirect "financial interest"¹¹³. An interested person is any director or officer¹¹⁴. A financial interest is an interest that may result in a direct or indirect financial benefit to the interested person or their family, whether through a business, investment, or other arrangement¹¹⁵. The term "family" for purposes of this policy shall be defined as a spouse, domestic partner, child, stepchild, parent, stepparent, sibling, or in-law. This includes any transaction between the Foundation and its for-profit subsidiaries in which an interested person has a financial interest¹¹⁶.

- **Section 6.3: Disclosure**

Any interested person who has a financial interest in a proposed transaction or arrangement with the Corporation shall promptly and fully disclose the existence and nature of the financial interest to the Board of Directors¹¹⁷.

- **Section 6.4: Procedure for Approval of Transactions**

1. The interested person shall recuse themselves from the Board's discussion of the proposed transaction and shall not be present during the deliberation or vote on the matter¹¹⁸.
2. The disinterested members of the Board shall investigate alternatives to the proposed transaction¹¹⁹.
3. After exercising due diligence, the Board shall determine whether the transaction is fair and reasonable to the Corporation and whether it is in the Corporation's best interest¹²⁰.
4. The transaction shall be approved only by an affirmative vote of a majority of the disinterested directors¹²¹.
5. In cases involving compensation for services, the Board must obtain and rely upon appropriate data as to comparable compensation for like services to ensure the compensation is "reasonable" and to establish a rebuttable presumption of reasonableness under IRS regulations¹²². The basis for this determination shall be documented in the minutes of the meeting¹²³.

- **Section 6.5: Annual Disclosure**

Each director and officer shall annually sign a statement which affirms such person has received a copy of the conflict of interest policy, has read and understands the policy, and agrees to comply with the policy¹²⁴.

Article VII: Indemnification

The Corporation shall indemnify its directors and officers to the fullest extent permitted by the Alabama Nonprofit Corporation Act¹²⁵. The Corporation shall have the power to purchase and maintain insurance on behalf of any person who is or was a director, officer, employee, or agent of the Corporation against any liability asserted against such person and incurred in any such capacity, or arising out of such person's status as such¹²⁶.

Article VIII: Corporate Records and Transparency

The Corporation shall keep correct and complete books and records of account and shall also keep minutes of the proceedings of its Board of Directors and committees¹²⁷. The Corporation shall make its annual information return, IRS Form 990, available for public inspection as required by law¹²⁸.

Article IX: Relationship with Controlled For-Profit Subsidiaries

- **Section 9.1: Purpose**
This article establishes the governance framework for the relationship between the Foundation and any for-profit corporation, limited liability company, or other entity that it controls (a "Subsidiary")¹²⁹. The purpose is to ensure that such relationships advance the Foundation's charitable mission while protecting its tax-exempt status¹³⁰.
- **Section 9.2: Mission Alignment**
The activities of any Subsidiary must be related to and in furtherance of the charitable purposes of the Foundation¹³¹. No Subsidiary shall engage in activities that could jeopardize the Foundation's 501(c)(3) status or contradict its mission¹³².
- **Section 9.3: Arm's-Length Transactions**
All transactions between the Foundation and any Subsidiary, including but not limited to loans, leases, service agreements, and asset transfers, shall be conducted on an arm's-length basis for fair market value and shall be documented in a formal written agreement¹³³.
- **Section 9.4: Repatriation of Profits**
The governing documents of each Subsidiary shall provide that any profits, dividends, or other distributions generated by the Subsidiary shall be transferred to the Foundation to be used in furtherance of its charitable purposes, after retaining sufficient capital for the Subsidiary's operational needs¹³⁴.
- **Section 9.5: Board Oversight**
The Foundation's Board of Directors shall retain oversight of all Subsidiaries¹³⁵. To ensure mission alignment and financial accountability, the governing body of each Subsidiary shall include at least one director who is also a current member of the Foundation's Board of Directors¹³⁶. The Foundation's Board shall periodically review the performance and activities of each Subsidiary¹³⁷.
- **Section 9.6: Ongoing Oversight and Reporting**
The Foundation's Board of Directors shall receive quarterly reports from each Subsidiary. These reports shall include financial statements, a summary of operational activities, and an assessment of how the Subsidiary's activities are contributing to the Foundation's charitable mission. The Board may, by resolution, designate a specific

committee, such as the Finance and Audit Committee or the Executive Committee, to be responsible for the day-to-day oversight and review of these reports.

Article X: Dissolution of the Corporation

Upon the dissolution of the Corporation, assets shall be distributed for one or more exempt purposes within the meaning of Section 501(c)(3) of the Code, or shall be distributed to an organization or organizations that are organized and operated exclusively for such purposes¹³⁸. Any such assets not so disposed of shall be disposed of by a Court of Competent Jurisdiction of the county in which the principal office of the Corporation is then located, exclusively for such purposes or to such organization or organizations, as said Court shall determine, which are organized and operated exclusively for such purposes¹³⁹.

Article XI: Amendments to Bylaws

These bylaws may be altered, amended, or repealed, and new bylaws may be adopted by the affirmative vote of two-thirds (2/3) of the entire Board of Directors at any regular or special meeting, provided that at least fourteen (14) days' written notice is given of the intention to alter, amend, or repeal or to adopt new bylaws at such meeting, and such notice contains a copy of the proposed amendment¹⁴⁰.

Article XII: Certification

I, the undersigned, do hereby certify that I am the duly elected and acting Secretary of Limye' Foundation, an Alabama nonprofit corporation, and that the foregoing Bylaws, comprising 12 Articles, constitute the Bylaws of said corporation as duly adopted by the Board of Directors on the day of, 2025¹⁴¹.

IN WITNESS WHEREOF, I have hereunto subscribed my name this day of, 2025¹⁴².

Secretary

Appendix A: Director and Officer Role Summary

This table provides a summary of key governance roles, terms, and responsibilities as defined in these bylaws¹⁴³. It is intended as a quick reference guide for onboarding and governance purposes¹⁴⁴.

Position	Term Length	Term Limits	Succession/Election	Primary Responsibilities	Key Bylaw Reference
Founder-Director	Perpetual, subject to removal for cause 145	None 146	N/A 147	Provide strategic guidance; serve as a full voting director 148.	Art. III, Sec. 3.3 149
Founding Director (Non-Founder)	3 Years 150	Max 2 consecutive terms 151	Elected by Board 152	Govern the Foundation; provide fiduciary oversight; support fundraising 153.	Art. III, Sec. 3.2 154
Additional Director	1 Year 155	Max 1 consecutive term; 1-year hiatus required 156	Elected by Board 157	Govern the Foundation; provide fiduciary oversight; support fundraising 158.	Art. III, Sec. 3.2 159

Chairman of the Board	1 Year 160	None (subject to Director term limits) 161	Elected by Board; typically ascends from Chair-Elect 162	Presides at Board meetings; Chairs Governance Committee; Partners with President 163	Art. IV, Sec. 4.3 164
President (ED)	1 Year 165	None 166	Nominated by Chairman; Elected by Board 167	Serves as Chief Executive Officer; manages daily operations 168	Art. IV, Sec. 4.4 169
Secretary	1 Year 170	None 171	Elected by Board 172	Manages corporate records, minutes, and official notices 173	Art. IV, Sec. 4.5 174
Treasurer	1 Year 175	None 176	Elected by Board 177	Chairs Finance Committee; provides financial oversight 178	Art. IV, Sec. 4.6 179

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